

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 3861

By: Roberts

4
5
6 AS INTRODUCED

7 An Act relating to schools; amending 70 O.S. 2021,
8 Section 9-108, which relates to additional
9 transportation expenses; requiring school district to
10 cover certain transportation costs; providing
11 exception for transportation to OSSAA activities;
12 prohibiting transportation money collected from OSSAA
13 to be chargeable or counted as an expense; providing
14 an effective date; and declaring an emergency.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 70 O.S. 2021, Section 9-108, is
17 amended to read as follows:

18 Section 9-108. The board of education of any school district
19 furnishing transportation is hereby authorized to furnish, in
20 addition to free transportation to and from school, transportation
21 within or without the district, within or outside of this state, for
22 children attending the schools of that district, for the purpose of
23 attending cocurricular and extracurricular activities. Two or more
24 districts may enter into agreements for the furnishing of such
transportation. The expense of any such additional transportation

1 shall be paid by ~~the children so transported, by the school activity~~
2 ~~or school organization receiving benefit from such transportation,~~
3 ~~or from other private sources~~ the school district unless the
4 cocurricular or extracurricular activity is sanctioned by the
5 Oklahoma Secondary School Activity Association (OSSAA), in which
6 case, the OSSAA shall pay the additional transportation expenses.
7 Money so collected from the OSSAA pursuant to this section shall not
8 be chargeable to or become a part of the school district's finances.

9 SECTION 2. This act shall become effective July 1, 2026.

10 SECTION 3. It being immediately necessary for the preservation
11 of the public peace, health or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

14
15 60-2-15671 SW 12/12/25
16
17
18
19
20
21
22
23
24